

**Before the
FEDERAL COMMUNICATIONS COMMISSION
Washington, DC 20554**

In the Matter of	)	
	)	
China Telecom (Americas) Corporation	)	GN Docket 20-109
	)	ITC-214-20010613-00346
f/k/a China Telecom (USA) Corporation	)	ITC-214-20020716-00371
	)	ITC-T/C-20070725-00285

**Executive Branch Response to December 10, 2020 Order Instituting Proceedings on
Revocation and Termination and Memorandum Opinion and Order**

Pursuant to the Commission’s December 10, 2020 Order,¹ the Executive Branch² hereby submits these comments responding to China Telecom (Americas) Corporation’s (China Telecom Americas’) redacted June 8, 2020 response³ to the Executive Branch’s April 9, 2020 recommendation to revoke and terminate China Telecom Americas’ international Section 214

¹ *In the Matter of China Telecom (Americas) Corp.*, FCC 20-177, GN Docket No. 20-109, Redacted Order Instituting Proceedings on Revocation and Termination and Memorandum Opinion and Order, ¶ 71 (released Dec. 14, 2020) (hereinafter, Order).

² For purposes of this filing, the Executive Branch includes the interested agencies listed in the April 9, 2020 Executive Branch recommendation. Executive Branch Recommendation to the Federal Communications Commission to Revoke and Terminate China Telecom’s International Section 214 Common Carrier Authorizations at 1, n.1, FCC File Nos. ITC-214-20010613-00346; ITC-214-20020716-00371; ITC-T/C-20070725-00285 (filed April 9, 2020) (hereinafter, Recommendation). The Executive Branch agencies include the Departments of Defense, (DoD), Justice (DOJ), and Homeland Security (DHS). *See* Exec. Order 13913, 85 Fed. Reg. 19643, 19644 § 3(b) (Apr. 8, 2020) (establishing composition of the Committee for the Assessment of Foreign Participation in the United States Telecommunications Services Sector). This filing is made in coordination with the departments, agencies, and offices carrying out the duties of Committee Advisors. *See id.* at 19644 §3(d).

³ Redacted Response of China Telecom to Order to Show Cause, Exhibit 16, GN Docket No. 20-109 (filed June 8, 2020) (Exhibit 16 providing China Telecom’s detailed response to the allegations in the Executive Branch’s April 9, 2020 Recommendation to Revoke and Terminate) (hereinafter, Response).

authorizations.

In its June 8, 2020 Response, China Telecom Americas states that the Recommendation makes an “offensive and insulting” implication, presents “misleading and inaccurate narratives,” repeatedly engages in “speculation,” “exaggerates and misstates the facts,” “vastly overstates the risks,” presents facts “out of context,” is based on “fear,” and ventures into “‘through the looking glass’ logic[.]”⁴ China Telecom Americas should look at its own statements before judging others.

China Telecom Americas’ Response presents an unsourced quote by a “Brendan [sic] Kuerbis”⁵ that criticizes media reports linking China Telecom Americas to Internet misrouting incidents. Additional research discloses that a “Brenden Kuerbis” was identified in connection with foreign influence efforts by China Telecom Americas, according to a publicly available Department of Justice (DOJ) Foreign Agents Registration Act (FARA) filing.⁶ According to the FARA disclosure, “Ogilvy Public Relations (OPR) on behalf of China Telecom Americas”

⁴ Response at 46; *id.* at 45; *id.* at 3; *id.* at 2, 3, 4, 5, 6, 13, 42, 45, 58, 64 (“speculation” or “speculative” or “speculate[s]”); *id.* at 18, 34; *id.* at 46; *id.* at 29; *id.* at 36, 43, 52, 55, 70; *id.* at 51; *id.* at 71.

⁵ Response at 62, n.149. The Response includes a single short-form cite to “Kuerbis, *supra*.” but does not identify a publication, hyperlink, or other source for the quote. Additional research provides further context, as the author also states that China Telecom “tops the list” of culprits in Internet misrouting incidents. Brenden Kuerbis, *The Summer of routing leaks, and good MANRS*, Internet Governance Project (Sept. 4, 2019), <https://www.internetgovernance.org/2019/09/04/the-summer-of-routing-leaks-and-good-manrs/> (“China Telecom (CT) has been portrayed frequently in the Western press as a culprit when it comes to routing incidents. But is it a deserved reputation? Table 1 shows the top 10 Leaker ASes in the data described above, ranked by total leaks. *China Telecom tops the list, and has two ASes (AS 4809 and 4134) in the top 10.*”) (emphasis added).

⁶ Exhibit 126, EB-2883, EB-2886, The Ogilvy Group, Supplemental Statement Pursuant to the Foreign Agents Registration Act, as amended, Appendix B (Sept. 30, 2019), <https://efile.fara.gov/docs/6585-Supplemental-Statement-20190930-2.pdf> (disclosing Ogilvy’s outreach to Brenden Kuerbis on behalf of China Telecom Americas).

reached out to Brenden Kuerbis, a research scientist at the Georgia Institute of Technology, at least six times between April and July 2019.⁷ Ogilvy also disclosed that it was paid more than \$290,000 by China Telecom Americas that year.⁸

CHINA TELECOM AMERICAS			
DOJ Foreign Agents Registration Act			
Outlet/Organization	Name	Method & Contact Date	Reason for Contact
Technology Policy Institute	David Fish	Call; July 18; Email; July 18, 23	Media Outreach
Technology Policy Institute	Scott Wallsten	Email; July 9, 17	Media Outreach
University of Pennsylvania	Chris Yoo	Email; July 10, 11, 12; Call; July 12	Media Outreach
MIT	Stuart Madnick	Email; May 8, 14, 29; June 11	Media Outreach
Center for Economic Freedom	John Tamny	Email; May 14, 15, 20, 21, 28; Call; May	Media Outreach
Council on Foreign Relations	Adam Segal	Email; May 13	Media Outreach
University of Oregon	Richard Cutler	Email; April 20	Media Outreach
Georgia Institute of Technology	Brenden Kuerbis	Email; April 15, 16, 25, 30; July 8, 16,	Media Outreach

(Exhibit 126, EB-2886, Ogilvy Group FARA Filing, Sept. 30, 2019)

Additional DOJ FARA filings disclose other foreign influence efforts by Ogilvy on behalf of China Telecom Americas, including efforts to “[c]hallenge misperceptions: . . . respond to criticisms of China Telecom Americas by providing accurate information about China Telecom Americas’ operations and the BGP [Border Gateway Protocol routing] issue, . . . via third party allies” and to “mobiliz[e] a third-party ally” in response to negative press.⁹ China Telecom Americas should be transparent about the role its influence efforts have played in generating support for its position that it has cited to the Commission, so that the Commission may weigh that purported evidence accordingly.

In its December 10, 2020 Order, the Commission found that “China Telecom Americas has failed to rebut the serious concerns of the Executive Branch about its continued presence in

⁷ *Id.* at EB-2883 (description of Ogilvy’s “influencer identification and engagement” activity), EB-2886 (Ogilvy’s contacts with Brenden Kuerbis).

⁸ *Id.* at EB-2877 (disclosing \$291,961.21 in payments from China Telecom Americas to Ogilvy in July and August 2019).

⁹ Exhibit 127, EB-2901, EB-2903, The Ogilvy Group, Exhibit A to Registration Statement at 14, 16 (Mar. 20, 2020), <https://efile.fara.gov/docs/6585-Exhibit-AB-20190320-4.pdf> (Ogilvy Statement of Work No. 1 for China Telecom Americas).

the United States[.]”¹⁰ In this proceeding, the Commission should consider a single question: In the current national security environment, should the Commission continue to certify that China Telecom Americas’ services are required by the public interest, convenience and necessity? Based on the record evidence, the answer is no.

I. The Commission has the legal authority to revoke and terminate China Telecom Americas’ international Section 214 authorizations

In its Order, the Commission stated that it will determine “whether the record as a whole” supports revocation and termination of China Telecom Americas’ Section 214 authorities.¹¹ In doing so, it will apply the “well-established” preponderance of the evidence standard.¹²

A. China Telecom Americas incorrectly states that the Commission must apply the “clear and convincing evidence” standard

China Telecom Americas argues that revocation “requires” a showing by clear and convincing evidence of egregious misconduct.¹³ China Telecom Americas misreads the law in multiple ways.

First, China Telecom Americas incorrectly imports the burdens of proof found in 47 U.S.C. § 312(d) and 47 C.F.R. § 1.91(d).¹⁴ These authorities do not apply to Section 214 authorizations. By their terms, they apply to revocations of *radio* licenses.

Second, China Telecom Americas relies on obsolete law to support its statement that

¹⁰ Order at ¶ 1.

¹¹ *Id.*

¹² *Id.* at ¶ 15, n.49.

¹³ Response at 8.

¹⁴ *See id.* at 8, n.10.

revocation of an FCC license is governed by the clear and convincing standard of proof.¹⁵ As support, China Telecom Americas cites a single case, *Sea Island*, decided more than 40 years ago in which a clear and convincing evidentiary standard was once held by the D.C. Circuit to apply to the revocation of a radio license.¹⁶ *Sea Island* has long been obsolete. Shortly after *Sea Island* was issued, the Supreme Court held that a preponderance of the evidence standard applies in formal administrative adjudications.¹⁷ For more than 30 years since, the Commission has consistently adopted the preponderance of the evidence standard in administrative proceedings.¹⁸

Third, Commission precedent does not limit revocation to egregious misconduct. China Telecom Americas inaccurately refers to non-binding policy statements and staff-level orders as Commission “precedent.”¹⁹ Policy statements are neither adjudications nor substantive Commission rules; they do not have the force of law and do not bind the Commission.²⁰ Bureau-level orders issued by staff are not precedent and do not bind the Commission.²¹ The

¹⁵ *Id.* at 8.

¹⁶ Response at 8, n.9 (citing *Sea Island Broadcasting Corp. of S.C. v. FCC*, 627 F.2d 240, 244 (D.C. Cir. 1980)).

¹⁷ See *Steadman v. SEC*, 450 U.S. 91, 102 (1981) (holding that formal adjudications under 5 U.S.C. § 556(d) would be governed by the preponderance-of-the-evidence standard).

¹⁸ *In re Kay*, 17 FCC Rcd 1834, 1837 (2002).

¹⁹ See, e.g., Response at 9, n.14 (citing non-binding policy statements as “Commission precedents”); *id.* at 9-10, n.15 (citing International and Wireline Bureau staff-level orders titled “Termination” orders as Commission precedent for revocation).

²⁰ See *Pacific Gas and Electric Co. v. Federal Power Comm’n*, 506 F.2d 33, 38-39 (1974) (“A properly adopted substantive rule establishes a standard of conduct which has the force of law. . . . A general statement of policy, on the other hand, does not establish a ‘binding norm.’ It is not finally determinative of the issues or rights to which it is addressed. The agency cannot apply or rely upon a general statement of policy as law because a general statement of policy only announces what the agency seeks to establish as policy.”);

²¹ See *Comcast Corp. v. FCC*, 526 F.3d 763, 769 (D.C. Cir. 2008) (“an agency is not bound by the actions of its staff if the agency has not endorsed those actions. . . . there is no authority for the proposition that a lower component of a government agency may bind the

Commission has declined to limit revocation to egregious misconduct in other contexts. It is well-settled that there would be independent grounds to revoke a license based on a finding of an intentional misrepresentation to the Commission.²² Revocation could be warranted, for example, by arguably “subtle” or “hyper-technical misrepresentations” about a radio station owner’s involvement in a licensee’s operations.²³ This is because the FCC relies heavily on the honesty and probity of its licensees in a regulatory system that is largely self-policing; misrepresentations do not need to be egregious to impair effective regulation if an agency can no longer depend on the representations made by licensees.²⁴

B. China Telecom Americas’ willful conduct supports revocation

China Telecom Americas argues that the Administrative Procedure Act (APA) requires that a licensee be given an opportunity to demonstrate or achieve compliance prior to revocation.²⁵ The statute does not require such an opportunity in every instance, and, in any event, China Telecom Americas has already been given multiple opportunities to address these concerns and has failed to do so.

China Telecom Americas fails to read the relevant APA provision in its entirety. The

decision making of the highest level”); *see also In the Matter of Kuiper Systems*, FCC 20-102, 2020 FCC LEXIS 2855, *44 ¶ 44 (July 30, 2020) (“Bureau-level decisions are not binding on the Commission . . .”). In the absence of Commission action to the contrary, 47 U.S.C. § 155(c)(3) allows bureau-level decisions to have the force of law, but such decisions are binding only on the parties to the proceeding. *See Comcast*, 526 F.3d at 770.

²² *See Contemporary Media Inc. v. FCC*, 214 F.3d 187, 196-98 (D.C. Cir. 2000) (affirming revocation of radio licenses and holding that a finding of intentional misrepresentation alone could be sufficient grounds for revocation).

²³ *Id.*

²⁴ *Id.* at 193.

²⁵ Response at 16, 71 (citing 5 U.S.C. § 558(c)(2)).

statutory text, 5 U.S.C. § 558(c)(2), provides an exception to these requirements “in cases of willfulness or those in which public health, interest, or safety requires otherwise.”²⁶ The instances involving the public interest and safety are reflected by the national security and law enforcement risks posed by China Telecom Americas’ retention of international Section 214 authorizations as articulated by the Executive Branch’s submissions. In addition, 5 U.S.C. § 558(c) prevents willfully noncompliant licensees, such as China Telecom Americas, from gaming the APA’s procedural protections as a way to delay revocation without making good faith efforts to achieve compliance.

China Telecom Americas’ willfulness is demonstrated by its failure to engage appropriately with the Executive Branch for more than a year after it was notified of its breaches of the Letter of Assurances (LOA) and asked to propose mitigation to address those breaches. In March 2019, the Executive Branch informed China Telecom Americas of the LOA breaches and invited China Telecom Americas to propose further mitigation.²⁷ The Executive Branch afforded China Telecom Americas another opportunity at a meeting in May 2019. China Telecom Americas failed to do so even though the LOA came with fewer requirements than more recent Executive Branch mitigation agreements. China Telecom Americas’ willfulness is also demonstrated by its improper redaction of the 2018 U.S. Records Security Agreement, which made clear its less-than-cooperative stance to dealing with Executive Branch agencies.²⁸ The evidence sufficiently demonstrates that China Telecom Americas has not made good faith efforts to achieve compliance for more than a year and supports the Commission’s Order and

²⁶ 5 U.S.C. § 558(c).

²⁷ Recommendation, Exhibit 102 at EB-2103.

²⁸ See Recommendation at 18, n. 65 (citing Business Confidential Exhibit 37 at EB-655, E-mail from Morgan Lewis to DOJ National Security Division (Jan. 24, 2019)).

findings.

II. The record as a whole supports revocation of China Telecom Americas' International Section 214 authorizations

Based on the record evidence, the Commission found that Executive Branch agencies have made “a serious and compelling case that China Telecom Americas’ use of its . . . section 214 authorizations poses a national security risk and also raises substantial law enforcement concerns, which China Telecom Americas has failed to adequately refute thus far.”²⁹ The Recommendation is supported by more than 2,700 pages of documentary evidence detailing the national security and law enforcement risks presented by China Telecom Americas’ retention of its international section 214 authorizations. This evidence includes many of China Telecom Americas’ own documents that were voluntarily provided to the Executive Branch. China Telecom Americas has not objected to the inclusion of this evidence in the record. It even cites Executive Branch exhibits (more than 50 times) in the Response to support its own arguments.

The Commission has also stated that “there are no substantial and material questions of fact in this case warranting an adjudicatory hearing[.]”³⁰ Any additional evidence is unlikely to dispute the material facts that form the basis for revocation based on national security and law enforcement risks.

A. The government of the People’s Republic of China (PRC) owns and controls China Telecom Americas

China Telecom Americas is owned by the PRC government through intermediary state-owned enterprises. The PRC government ultimately owns approximately 70.89 percent of China

²⁹ Order at ¶ 22.

³⁰ Order at ¶ 17.

Telecom Americas and its parent entities through the State-Owned Assets Supervision and Administration Commission.

Whether the PRC government controls China Telecom Americas can be decided by the Commission based on facts already in the record. China Telecom Americas argues, as a legal matter, that it should be treated as sufficiently separate from the PRC government because of protections provided under Delaware corporation laws.³¹ The Commission has expressly rejected reliance on corporate formalities in discerning control for Section 214 purposes.³² If warranted by the facts, the Commission has in the past disregarded corporate formalities and pierced the corporate veil; it has held a carrier, its parent entity, and its ultimate controlling owner as “one and the same” for legal purposes “when it is necessary to preserve the integrity of the Act and to prevent the entities from defeating the purpose of statutory provisions.”³³ Under this reasoning, the Commission should find that China Telecom Americas is controlled by the PRC government.

There is no material dispute over the facts. The PRC government owns China Telecom Corp. Ltd., the sole shareholder of China Telecom Americas. China Telecom Corp. Ltd. amended its Articles of Association to provide for the Chinese Communist Party’s (CCP) intervention in its management and operations.³⁴ China Telecom Corp. Ltd. retains significant control over China Telecom Americas and can make major corporate or business changes, remove and replace directors, approve core institutional documents, and approve other major

³¹ Response at 47-51.

³² 47 C.F.R. § 63.24(d), Note 1 (setting forth relevant factors to determining control for Section 214 purposes).

³³ *In re Sandwich Isles*, 31 FCC Rcd 12947, 12968-69 ¶¶ 69-70 (2016).

³⁴ Recommendation at 36-37.

matters.³⁵ By controlling the board, China Telecom Corp. Ltd. also controls China Telecom Americas' ability to set fundamental policies, finances, budgets, and long term strategic plans.³⁶ The evidence in the record is sufficient for the Commission to make a finding of control.

B. The U.S. government has raised concerns about the PRC government and about China Telecom Americas, its parent entities, and affiliates

In recent years, the U.S. government has issued numerous official statements, testimonies, reports, and criminal indictments from the Departments of Justice, Defense, and Homeland Security, the Federal Bureau of Investigation, the U.S. Trade Representative, this Commission, and other agencies, all warning of the threat posed by the PRC government.³⁷ These concerns were also directed to the PRC government's potential use of "Chinese information technology firms as routine and systematic espionage platforms against the United States[.]"³⁸

China Telecom Americas argues that these official U.S. government statements are

³⁵ Response at 45, n.104 (citing Redacted Response of China Telecom to Order to Show Cause, Exhibit 3, providing a description of China Telecom Americas' corporate governance).

³⁶ Redacted Response of China Telecom to Order to Show Cause, Exhibit 3 (description of China Telecom Americas' corporate governance).

³⁷ See Recommendation at 2-7 (citing 2019 threat assessment by the Director of National Intelligence to Congress; 2018 report on foreign economic espionage in cyberspace by the National Counterintelligence and Security Center, Director of National Intelligence; 2019 report by the Secretary of Defense to Congress; 2018 Senate testimony by the director of the Cybersecurity Infrastructure Security Agency, U.S. Department of Homeland Security; 2018 White House National Cyber Strategy; 2018 speech by the Director of the Federal Bureau of Investigation; 2018 indictments of PRC state-sponsored cyber actors by the Department of Justice; 2018 reports by the U.S. Trade Representative; 2019 Commission opinion denying China Mobile (USA)'s application for Section 214 authorization).

³⁸ Recommendation at 3 (quoting Exhibit 8 at EB-351, *Worldwide Threat Assessment of the U.S. Intelligence Community before the S. Select Comm. On Intelligence*, 116th Cong. 5 (2019) (statement of Daniel R. Coats, Director of National Intelligence)).

irrelevant because they do not apply directly to it or its parent entities. That China Telecom Americas was not individually identified in each official statement cited by the Executive Branch is not the point. National security and law enforcement concerns relating to PRC government ownership or control over telecommunications and information technology firms are directly relevant to China Telecom Americas because it is a telecommunications and information technology firm that is ultimately owned and controlled by the PRC government. Moreover, the U.S. government has more recently identified risks specifically relating to China Telecom Americas. On June 9, 2020, the Permanent Subcommittee on Investigations for the U.S. Senate Homeland Security and Governmental Affairs Committee released a report that expressly raised concerns about the national security threat posed by China Telecom Americas.³⁹ On June 24, 2020, the Deputy Secretary of Defense publicly identified one of China Telecom Americas' parent entities as having ties to the PRC military.⁴⁰ On November 12, 2020, the President issued an executive order prohibiting transactions in publicly traded securities after finding a threat was posed by securities investments that finance Communist Chinese military companies and identifying one of China Telecom Americas' parent entities as such a company.⁴¹

³⁹ Exhibit 128 at EB-2905, *Threats to U.S. Networks: Oversight of Chinese Government-Owned Carriers*, Staff Report, Permanent Subcommittee on Investigations, Committee on Homeland Security and Governmental Affairs, U.S. Senate (June 9, 2020), <https://www.hsgac.senate.gov/imo/media/doc/2020-06-09%20PSI%20Staff%20Report%20-%20Threats%20to%20U.S.%20Communications%20Networks.pdf>.

⁴⁰ Exhibit 129 at EB-3009, Letter from DoD Deputy Secretary of Defense David Norquist to Senator Tom Cotton (June 24, 2020), <https://www.cotton.senate.gov/imo/media/doc/Sen%20Cotton%20NDAA%20FY%201999%20Sec%201237%20Response%2006242020.pdf> (identifying updated list of “Communist Chinese military companies” required by Section 1237 of the FY 1999 National Defense Authorization Act (NDAA), Pub. L. No. 105-261, 112 Stat. 1920).

⁴¹ Exhibit 130 at EB-3011, Addressing the Threat From Securities Investments That Finance Communist Chinese Military Companies, Exec. Order 13959, 85 Fed. Reg. 73185 (Nov.

C. China Telecom Americas’ active support for PRC foreign policy objectives, including the Belt and Road Initiative

China Telecom Americas denies that it is subject to exploitation, influence, or control by the PRC government, stating that it is an “independent, profit-seeking business,” and that there is “no evidence” that it “has ever attempted to do anything contrary to the interests of the United States.”⁴² However, China Telecom Americas’ public statements show that it is an active participant in the PRC government’s foreign policy, particularly with respect to the PRC’s Belt and Road Initiative.

China Telecom Americas publicly states that it “will follow the One Belt One Road initiative,” “has implemented a pioneering global information strategy” to support the Belt and Road initiative, and “is pledged to strive for better global economic cooperation.”⁴³ These are not the statements of a purely commercial actor; instead, these statements are evidence that China Telecom Americas has endorsed and actively supports the PRC government’s foreign policy objectives. China Telecom Americas also publicly works shoulder-to-shoulder with PRC government officials to promote PRC foreign policy. In a public forum about the Belt and Road Initiative in Latin America, senior China Telecom Americas executive Luis Fiallo (while sitting

17, 2020).

⁴² Response at 46, 47.

⁴³ Recommendation, Exhibit 106 at EB-2141 (screenshot of interview by China Telecom (Americas) President Steven Tan Xu stating that the company “will follow the One Belt One Road initiative”) (video at <https://www.facebook.com/chinatelecomglobal/videos/steven-tan-xu-president-of-china-telecom-americas-corporation-shares-his-insight/940268502821658/>); China Telecom Americas, The Belt and Road Initiative, <https://youtu.be/JhjEKSXESFM?t=95> (last visited Dec. 30, 2020) (starting at 1:35; stating that China Telecom “is pledged to strive for better global economic cooperation. Hence, we have implemented a pioneering global information strategy”). Recordings of these videos have been made and will be made available to the Commission upon request.

next to a PRC diplomat) stated that the company had been “asked to draft . . . security laws . . . for a developing new city that’s being built in one of the countries and they want it to be much more stringent [T]his takes a lot of time besides having the local [PRC] embassy that also has to bless you . . . and bless the project itself, they have to make sure that everything’s gonna work fine. . . . [If it doesn’t work,] it reflects bad on us, it reflects bad on the company, it reflects bad on China.”⁴⁴ Drafting security laws for a Latin American city and asking the PRC embassy to “bless” projects demonstrates that China Telecom Americas deliberately furthers the PRC government’s foreign policy goals, and that its operations are intertwined with those goals.

The U.S. intelligence community has raised particular concerns about the Belt and Road Initiative, citing its potential to extend the PRC military’s global reach.⁴⁵ China Telecom Americas’ allegiance to the Belt and Road Initiative demonstrates that it is reasonable to expect China Telecom Americas’ support of the PRC government’s goals and initiatives generally, including those that conflict with U.S. interests (such as conducting surveillance, stealing U.S.-person data, and, in the right circumstances, disrupting U.S.-person communications).

⁴⁴ Inter-American Dialogue, China’s Belt and Road: What Role For Latin America? <https://www.youtube.com/watch?v=YnUpwPJH0ok&feature=youtu.be&t=3348> (last visited Nov. 30, 2020) (starting at 55:48 to 57:30, statements by China Telecom’s Managing Director Luis Fiallo). A recording of this video has been made and will be made available to the Commission upon request.

⁴⁵ Recommendation, Exhibit 8 at EB-371 (2019 Worldwide Threat Assessment by the Director of National Intelligence).

III. Conclusion

The Commission should revoke and terminate China Telecom Americas' international Section 214 authorizations based on the national security and law enforcement risks that have been identified, as well as China Telecom Americas' failure to comply with the conditions of its authorizations.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Kathy Smith", with a stylized flourish at the end.

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January 14, 2021

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130	Addressing the Threat From Securities Investments That Finance Communist Chinese Military Companies, Exec. Order 13959, 85 Fed. Reg. 73185 (Nov. 17, 2020).	EB-3010